

to recover damages based on a claim of failure to prevent ... harassment ... she must show three essential elements: 1) plaintiff was subjected to ... harassment ...; 2) defendant failed to take all reasonable steps to prevent ... harassment ...; and 3) this failure caused plaintiff to suffer injury, damage, loss or harm.” *Caldera v. Department of Corrections and Rehabilitation* (2018) 25 Cal.App.5th 31, 43–44 (internal quotations omitted). “There can be no liability for an employers’ failure to prevent harassment claim unless actionable harassment occurred.” *Ibid*.

Once an employer is informed of the sexual harassment, the employer must take adequate remedial measures. The measures need to include immediate corrective action that is reasonably calculated to 1) end the current harassment and 2) to deter future harassment. The employer's obligation to take prompt corrective action requires 1) that temporary steps be taken to deal with the situation while the employer determines whether the complaint is justified and 2) that permanent remedial steps be implemented by the employer to prevent future harassment once the investigation is completed. An employer has wide discretion in choosing how to minimize contact between the two employees, so long as it acts to stop the harassment. “[T]he reasonableness of an employer's remedy will depend on its ability to stop harassment by the person who engaged in harassment.”

Bradley v. Department of Corrections & Rehabilitation (2008) 158 Cal.App.4th 1612, 1630 (citations omitted).

At bar, it is undisputed that Plaintiff reported the December 3, 2021, incident to her supervisor on December 6, 2021, and thereafter reported the matter to the Human Resources director. UMF 6-7. Defendants then contends the Human Resources director would “speak with Salmon about the reported conduct.” UMF 10. However, Defendants failed to present any evidence as to how they took prompt corrective action to deal with the situation temporarily while the initial complaint was being investigated. Moreover, Defendants failed to include any evidence regarding the temporary and/or permanent remedial response to Plaintiff’s 2022 or 2024 reports to Human Resources. *See* PUMF 16-20, 29, 40-42. Defendants did not meet their initial burden to establish that it took all reasonable steps to prevent harassment. Defendants are not entitled to judgment as a matter of law as to this claim.

4. CU0001544 Caitlin Peters vs. Cara Krpalek, et al.

The June 26, 2026, demurrer by Defendant Jiri Krpalek is deemed waived.

The Court ruled on March 13, 2026, as follows: “If Defendant wishes to proceed with a demurrer he must file the same, notice the same for hearing, serve the same and provide proof of service of the same, all prior to March 27, 2026. If no demurrer is properly filed, served and noticed prior thereto, the Court shall conclude that Defendant is waiving his right to demur.”

At bar, there is no proof filed with the Court that Defendant timely served the moving papers on Plaintiff as required by the Court’s order and Code of Civil Procedure section 1005(b). As such, Defendant has waived his right to demur.

5. CU0002491 Malin Kumar Ram vs. Rodney Andrews, et al.

Defendant Andrews's March 19, 2026, demurrer to the December 1, 2025, complaint is denied. At bar, Plaintiff was allowed leave to amend after previous demurrers were granted. Plaintiff's first amended complaint (FAC) was filed and served on May 7, 2026. "[A]n amendatory pleading supersedes the original one, which ceases to perform any function as a pleading." *JKC3H8 v. Colton* (2013) 221 Cal.App.4th 468, 477 (quotations omitted). "The amended complaint furnishes the sole basis for the cause of action, and the original complaint ceases to have any effect either as a pleading [¶] Because there is but one complaint in a civil action, the filing of an amended complaint moots a motion directed to a prior complaint." *Ibid.* (quotations and citations omitted). Thus, the March 19, 2026, demurrer as to the original complaint is moot and denied as such.

The June 4, 2026, demurrer to the FAC by Defendant Andrews is confirmed for hearing on September 11, 2026. The June 8, 2026, demurrer to the FAC by Defendant Hasbun is advanced for hearing from October 2, 2026, to September 11, 2026. All remaining briefs shall be filed in accordance with the Rules of Civil Procedure.

6. CU0002718 Zachary J. Goepel v. U-Haul Co Of California et al

Plaintiff Zachary Goepel's motion for preliminary injunction is denied without prejudice.

The Court previously continued the order to show cause to June 26, 2026, ordering "Plaintiff to lodge an order to show cause and continuing [the] restraining order with the Court no later than 5/19/2026." The moving papers were filed one day late, on May 20, 2026. Due to clerical error, the proposed temporary order and order to show cause were not brought to the attention of the Court and did not issue. The Court apologizes for this clerical oversight. Moreover, there is no evidence that any of the moving papers have been served on the Defendants.

The above procedural issues notwithstanding, Plaintiff presently has not submitted any evidence to show he is entitled to relief. Preliminary injunctive relief requires the use of competent evidence to create a sufficient factual showing on the grounds for relief. See, e.g., *ReadyLink Healthcare v. Cotton* (2005) 126 Cal.App.4th 1006, 1016; *Ancora-Citronelle Corp. v. Green* (1974) 41 Cal.App.3d 146, 150. Injunctive relief may be granted based on a verified complaint, sworn declarations, affidavits, or any combination of the foregoing provided facts sufficient for relief are contained there. Code Civ. Proc. §§ 527(a), (h); 2009; 2015.5.

The trial court considers two factors in determining whether to issue a preliminary injunction: (1) the likelihood the plaintiff will prevail on the merits of its case at trial, and (2) the interim harm the plaintiff is likely to sustain if the injunction is denied as compared to the harm the defendant is likely to suffer if the court grants a preliminary injunction. Code Civ. Proc. § 526(a). The balancing of harm between the parties "involves consideration of such things as the inadequacy of other remedies, the degree of irreparable harm, and the necessity of preserving the status quo." *Husain v. McDonald's Corp.* (2012) 205 Cal.App.4th 860, 866-867.

At bar, the declaration Plaintiff included with his motion is incomplete and ambiguous. For example, the Plaintiff's declaration states, "Beginning on or about [insert dates], my gate credentials stopped working and/or overlocks were placed on [identify units/dates], preventing access." Goepel Decl., 7:8-9. No specific dates or locations are noted. Subsequently, Plaintiff